FUTURES MATTER EDUCATION

Futures Matter - Northwood, 122 Emily Street, Highgate, Birmingham, B12 0XJ

Complaints Policy

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1.0 DEFINITIONS AND AIMS

1.1 Definitions

DfE guidance explains the difference between a concern and a complaint.

- A **concern** is an expression of worry or doubt over an issue considered to be important, for which reassurance is sought
- A **complaint** is an expression of dissatisfaction, however made, about actions taken or a lack of action

Most concerns can be resolved informally and quickly, and we encourage families to raise them early. A complaint follows the formal procedures in this policy.

Any parent or carer of a pupil, or of a prospective pupil, can make a complaint about the school. Anyone else, including a member of the public or a placing local authority, can also use this policy to make a complaint about the facilities or services we provide. Where a complaint is covered by a separate statutory procedure, for example an exclusion or an admission decision, we use that procedure instead (see section 3.0).

1.2 Aims

Futures Matter - Northwood aims to meet its legal duties when responding to complaints. When we respond to a complaint, we aim to:

- be impartial and non-adversarial
- carry out a full and fair investigation, where one is needed
- address every point at issue and give an effective and prompt response
- respect confidentiality where necessary
- treat complainants with respect and courtesy
- make decisions that are lawful, rational, reasonable, fair and proportionate
- keep the complainant informed of progress
- use what we learn to improve the school

We try to resolve complaints informally wherever possible, and give complainants the chance to complete the whole procedure. We make this policy available on our school website and from the school office. We are sensitive to the needs of everyone involved, and make reasonable adjustments, for example for a parent or carer with a disability, or who finds written communication difficult. These aims support our commitment to working in partnership with families and to the wellbeing and success of every pupil.

2.0 LEGISLATION AND GUIDANCE

This policy meets the requirements of Part 7 of the Schedule to the Education (Independent School Standards) Regulations 2014 (paragraph 33), which require us to have and make available a written complaints procedure for parents and carers of pupils and prospective pupils. It is also based on the Department for Education (DfE) best practice guidance on complaints procedures, and on the Equality Act 2010, the Data Protection Act 2018, UK GDPR and the Freedom of Information Act 2000, which apply to how we handle complaints and records.

3.0 SCOPE

3.1 What this Policy Does Not Cover

This policy does not cover complaints that follow a separate procedure. Please see our separate policies for:

- admissions (see our Admissions Policy)
- statutory assessments of special educational needs (made by the local authority)
- safeguarding matters likely to need a child protection investigation (see our Safeguarding and Child Protection Policy)
- suspension and permanent exclusion
- whistleblowing
- staff grievances
- staff discipline

Complaints about services provided by another organisation that uses our premises should be made to that organisation.

3.2 Complaints that Raise Safeguarding Concerns

If a complaint says or suggests that a child may be at risk of harm, or an allegation is made against a member of staff, we will tell the Designated Safeguarding Lead (DSL) straight away and follow our Safeguarding and Child Protection Policy and Staff Code of Conduct. The complaint procedure may be paused until the safeguarding process is complete. We may also need to involve the local authority designated officer (LADO) or children's social care.

3.3 Pupils

Our pupils can raise a worry or a complaint with any adult in school, including their key adult or the Head Teacher, in whatever way is easiest for them, such as talking, writing or drawing. We take every worry seriously, deal with it promptly and kindly, and tell the pupil what we have done. A parent or carer can help a pupil to complain, and a pupil can ask for an adult they trust to support them. Where a complaint is about a safeguarding matter, the DSL leads.

3.4 Complaints About Staff Conduct

Where a complaint is about the conduct of a member of staff, the Head Teacher (or the Chair of the School Governance Board for a complaint about the Head Teacher) decides whether it should also be dealt with under our staff disciplinary procedures or, if a child may be at risk, under our Safeguarding and Child Protection Policy. We tell the complainant that the matter is being addressed, but we do not share the outcome of any disciplinary action, because it is confidential to the member of staff.

4.0 ROLES AND RESPONSIBILITIES

Who	Responsibilities
The complainant	Explain the complaint in full and as early as possible, follow this procedure, respond to deadlines, ask for help if needed, treat everyone with respect, respect confidentiality, not approach individual governors about the complaint, and not post details of the complaint on social media.
The investigator	Appointed to establish the facts. Interviews everyone involved, keeps clear notes securely, considers all relevant records and evidence, keeps to the timescales, and prepares a report for the Head Teacher or the panel with the facts, possible solutions and recommended actions.
The complaints co-ordinator	The Head Teacher, or an administrator they name (for a complaint about the Head Teacher, the Chair of the School Governance Board or a person they name). Keeps the complainant up to date, makes sure the process runs smoothly, is aware of issues such as sharing third-party information and the support a complainant needs, and keeps the records.
The clerk	The clerk to the School Governance Board, or another person appointed by the Proprietor to act as clerk. Is the contact point for the complainant and the panel, makes sure everyone knows their legal rights and duties, sets the date, time and venue of the hearing, collates and circulates papers, and records and circulates the minutes and outcome.
The panel chair	Chairs the hearing, makes sure everyone is treated with respect, that all parties see the relevant information and can present their case, and that the panel is open-minded and independent, with no member having an interest in the outcome or involvement in an earlier stage.
The Head Teacher	Is responsible for stages 1 and 2 of complaints about staff, makes sure the policy is followed, and works with the School Governance Board to learn from complaints.
The Proprietor and School Governance Board	Appoint the panel (the Proprietor on behalf of the school, or the Chair of the Board where the Proprietor is the subject of the complaint), monitor how well the procedure works, and review the trends in complaints.
Panel members	Are impartial and independent, have no prior involvement in or knowledge of the complaint, consider the evidence with an open mind, and take extra care where the complainant is a child or young person (see section 6.3).

5.0 PRINCIPLES FOR INVESTIGATION

When we investigate a complaint, we try to find out:

- what has happened

- who was involved
- what the complainant feels would put things right

5.1 Timescales

The complainant should raise the complaint within 3 months of the incident. If the complaint is about a series of related incidents, it should be raised within 3 months of the last incident. We will consider exceptions where there were good reasons for not complaining sooner and the complaint can still be investigated fairly.

A complaint made in the school holidays is treated as received on the first school day after the holiday. If we cannot meet a timescale in this policy, we will agree a new date with the complainant and explain the delay in writing.

If the police, local authority, a safeguarding team, tribunal or another body is investigating part of the complaint, this may affect our timescales or pause our procedure until that body has finished. If a complainant starts legal action against the school about the complaint, we will consider whether to pause the procedure until the legal action ends.

5.2 Anonymous Complaints

We do not normally investigate anonymous complaints. The Head Teacher, or the Chair of the School Governance Board where the matter involves the Head Teacher, decides whether an anonymous complaint raises a matter serious enough to warrant investigation. Any suggestion that a child may be at risk is passed to the Designated Safeguarding Lead straight away.

5.3 Withdrawing a Complaint

If a complainant wants to withdraw a complaint, we ask them to confirm this in writing.

5.4 Resolving Complaints

At every stage we want to put things right. Where appropriate, we will acknowledge that the complaint is upheld in whole or in part. We may also offer one or more of the following:

- an explanation
- an admission that the situation could have been handled differently or better
- an assurance that we will try to make sure the event complained of does not happen again
- an explanation of the steps that have been or will be taken to help make sure it does not happen again, and when any changes will be made
- an undertaking to review our policies in light of the complaint
- an apology

6.0 STAGES OF COMPLAINT

This section does not apply to complaints against the Head Teacher, a governor, the Proprietor or the Board, which are covered in section 7.0. We have a 3-stage procedure, with the timescales below. School days mean days when the school is open to pupils.

Stage	Timescales
Stage 1: informal resolution	We acknowledge within 2 school days. We aim to resolve the matter, and give any written response, within 10 school days.

Stage	Timescales
Stage 2: formal investigation	We acknowledge within 3 school days and send a written conclusion within 15 school days of receiving the complaint.
Stage 3: panel hearing	The complainant asks for a panel within 10 school days of the stage 2 response. We aim to hold the hearing within 15 school days of the request, send papers at least 5 school days before it, and send the outcome in writing within 5 school days after it.

6.1 Stage 1: Informal Resolution

We make every effort to deal with concerns and complaints early and informally. The complainant should raise the concern as soon as possible, in person, by letter, telephone or email, with the relevant member of staff, such as their child's key adult or tutor, or with the Head Teacher. If they are unsure who to contact, they can contact the school office on 0121 835 1360 or at office@futuresmattereducation.co.uk. They should say what they feel would resolve the concern.

We acknowledge the concern within 2 school days and confirm how we will proceed and how long we expect it to take. The informal stage may include a meeting between the complainant and the Head Teacher or the person the concern is about, where this is appropriate. We then send a written response within 10 school days of the concern being raised, or within 5 school days of any meeting if later. If we cannot deal with the matter in this time, we update the complainant. If the matter is not resolved, the complainant can escalate it to a formal complaint. Our response also tells the complainant how to take the matter further if they remain dissatisfied.

6.2 Stage 2: Formal Investigation

Making a formal complaint. A formal complaint can be made by letter or email (preferred), by telephone, in person, or through a third party acting for the complainant with their consent. It should be sent to the Head Teacher via the school office and marked private and confidential. The complainant should give relevant dates, times, the names of any witnesses and copies of any relevant documents, and say what they feel would resolve the complaint. If a complainant needs help to make a formal complaint, they can contact the school office or an independent organisation such as Citizens Advice, and a form is provided in Appendix 1.

Investigation. We acknowledge the complaint in writing within 3 school days. The Head Teacher will ask the complainant to clarify the complaint, what remains unresolved and what outcome they want. The Head Teacher then carries out the investigation and considers whether a face-to-face meeting is the best way to do so. The Head Teacher can ask another member of the leadership team to investigate, but will make the decision themselves.

Conclusion. We send a written conclusion within 15 school days of receiving the complaint. If we cannot meet this date, we update the complainant and give a new date. The conclusion sets out what we did to investigate, a full explanation of the decision and the reasons for it, and any action we will take. If the complainant is not satisfied and wants to go to stage 3, they should tell the clerk in writing within 10 school days of receiving the response. The conclusion tells the complainant how to do this. A request made after this time is considered only where there are exceptional circumstances.

6.3 Stage 3: Panel Hearing

The panel. If the complainant is not satisfied with the stage 2 response, the complaint goes to a panel hearing. The panel is appointed by or on behalf of the Proprietor. It has at least 3 people who were not directly involved in the matters in the complaint. At least 1 member is independent of the management and running of the school, which means they are not a member of staff, the Proprietor, a director or a member of the School Governance Board, and have no connection to the school or the complaint. The panel has access to the record of the complaint (see section 10.0). If we cannot find a suitable independent person ourselves, the Proprietor will source one, for example through another independent school, a local authority governor services team or an independent education consultancy, or will convene an entirely independent panel.

Arrangements. We give the complainant reasonable notice of the hearing. The clerk will offer dates and aim to hold the hearing within 15 school days of the request. If the complainant turns down 3 proposed dates without good reason, the clerk will set a date, and the hearing will go ahead on the written submissions of both sides. Written material is sent to all parties at least 5 school days before the hearing, and the hearing is minuted. The clerk asks each side to send any further written material at least 7 school days before the hearing, so that everything can be circulated at least 5 school days before it.

At the hearing. The hearing is held in private. The complainant is allowed to attend and to be accompanied, if they wish, for example by a friend or relative. We do not usually encourage either side to bring legal representation, but we consider it case by case, for example where a member of staff called as a witness wants union or legal support. Representatives of the media may not attend. Recordings of the meeting are not normally allowed unless needed as a reasonable adjustment, and all parties are asked for consent in advance, which is recorded in the minutes. The panel does not normally accept recordings of conversations made covertly, without the informed consent of everyone recorded.

The panel does not consider new complaints, or evidence unrelated to the original complaint, at this stage. A new complaint is dealt with from stage 1.

Pupils and young people. Where the complainant is a child or young person, or a child will be present for any part of a hearing, the panel takes extra care that they do not feel intimidated, respects their views, gives them equal consideration to those of adults, and asks in advance what support they need. Where a parent or carer is the complainant, the panel gives them the chance to say which parts of the hearing, if any, the child needs to attend, but may decline a request that it considers is not in the child's best interests. The welfare of the child is paramount.

Each side has the chance to set out written and oral submissions, call witnesses, and ask and answer questions. Once both sides have presented their cases, they are asked to leave and the panel considers the evidence.

The outcome. The panel can uphold the complaint in whole or in part, or dismiss it in whole or in part. If it upholds the complaint, it decides the right action to put things right and, where appropriate, recommends changes to our systems or procedures. The panel must make findings and recommendations. It sends a copy of them, with the minutes, to the complainant and, where relevant, the person the complaint is about, and a copy is available for inspection on the school premises by the Proprietor and the Head Teacher. We tell those involved the decision in writing within 5 school days of the hearing, with a full explanation and reasons,

and any action we will take. The letter also explains that the complainant can contact the DfE if they remain dissatisfied (see section 8.0).

7.0 COMPLAINTS ABOUT LEADERS AND THE BOARD

Complaints can be made in the same ways as set out in section 6.0. If made in writing, they should be sent via the school office, marked private and confidential, and the office will pass them on unopened.

7.1 Complaints Against the Head Teacher

The complaint should be addressed to the Chair of the School Governance Board. The Chair, or a suitably skilled and impartial member of the Board whom the Chair appoints, carries out stage 1. If the matter is not resolved, the complainant can make a formal complaint, and the Chair, or another suitably skilled and impartial member of the Board if the Chair carried out stage 1, carries out stage 2. If the complainant is still not satisfied, the complaint goes to a panel hearing as set out in section 6.3.

7.2 Complaints Against an Individual Governor

The complaint should be addressed to the Chair of the School Governance Board. The Chair hears the complaint informally at stage 1, and carries out stage 2 if it is not resolved. If the complainant is still not satisfied, the complaint goes to a panel hearing as set out in section 6.3.

7.3 Complaints Against the Proprietor

The complaint should be addressed to the Chair of the School Governance Board, who carries out stages 1 and 2 or appoints an independent investigator. The Chair, rather than the Proprietor, appoints the panel for stage 3, and the Proprietor takes no part in appointing it or in the hearing.

7.4 Complaints About the Chair or the Whole Board

The complaint should be addressed to the Proprietor. The Proprietor decides the most appropriate course of action, depending on the nature of the complaint. This may include having the complaint heard by a suitably skilled and impartial member of the Board, appointing an independent investigator for stage 2, and having stage 3 carried out by a completely independent panel.

8.0 IF THE COMPLAINANT REMAINS UNSATISFIED

If a complainant is not satisfied with the outcome of our complaints procedure and the complaint is about the school not meeting the Independent School Standards set by the DfE, they can refer it to the DfE. The standards include education, pupils' welfare, health and safety, school premises, staff suitability, information for parents, and the spiritual, moral, social and cultural development of pupils. The DfE considers reports of a major failure to meet the standards and, where appropriate, can arrange an emergency inspection to look at pupil welfare and health and safety, and make sure the school deals with serious failings. More information, and how to refer a complaint, is at www.gov.uk/complain-about-school. We will include this information in our outcome letters.

The DfE does not normally re-investigate the substance of a complaint or overturn a decision we have made. It looks at whether we have followed our published procedure and acted lawfully and reasonably. A complainant can also contact the DfE by telephone on 0370 000

2288, or by writing to the Department for Education, Piccadilly Gate, Store Street, Manchester, M1 2WD.

Parents who disagree with the school named in their child's Education, Health and Care plan can use the rights set out in the SEND Code of Practice. Complaints about how our placing authority has acted should be made to that authority.

9.0 UNREASONABLE AND PERSISTENT COMPLAINTS

9.1 Unreasonable and Vexatious Complaints

Most complaints are valid and we treat them seriously. A complaint can become unreasonable or vexatious if the person:

- refuses to say what the complaint is or what outcome they want, despite offers of help
- refuses to co-operate with the investigation or to accept that some issues are outside this policy
- insists the complaint is dealt with in ways that do not fit this policy or good practice
- brings in trivial or irrelevant information, or raises large numbers of detailed but unimportant questions and insists they are answered at once
- makes unjustified complaints about the staff trying to deal with the issue, or changes the basis of the complaint as the investigation proceeds
- repeats the same complaint after it has been investigated and found groundless, or refuses to accept the findings after the procedure has been followed in full
- seeks an unrealistic outcome, or makes excessive demands on school time through frequent, lengthy contact
- uses threats, abusive, offensive or discriminatory language, or violence, knowingly gives false information, or posts unacceptable information on social media

This list is not complete, and it is for the school to decide what is unreasonable. We ask complainants to limit their contact with us while a complaint is dealt with, because repeated contact can delay the outcome.

We take every reasonable step to address the complainant's comments and give them a clear statement of our position and their options, and we follow this procedure as usual wherever possible. Where we can, the Head Teacher or the Chair will first talk with the complainant informally before treating behaviour as unreasonable. If it continues, the Head Teacher will write to the complainant explaining that it is unreasonable and referring them to this policy. Where contact is excessive and disruptive, we may give a single point of contact by email, limit the number of contacts, for example a fixed number each term, ask the complainant to use a third party to act for them, such as Citizens Advice, or put another strategy in place. If there is a serious incident of aggression or violence, we will tell the police at once and confirm what we do in writing, which may include barring a person from the premises, and we will support any staff member who has been a target.

9.2 Serial and Persistent Complaints

If a complainant contacts us again about an issue that has been taken through the procedure, we may stop responding when:

- we have taken every reasonable step to address their concerns

- they have been given a clear statement of our position and their options
- they contact us repeatedly, making substantially the same points each time

The case for stopping is stronger if the communications are often abusive or aggressive, include insulting personal comments or threats, or we believe they are meant to cause disruption. We will not refuse to accept further correspondence or complaints from a person. A serial or persistent marking applies to the subject of the complaint, not to the complainant. We will tell the person we intend to stop responding, and that we will consider any new complaint that is materially different from, or unconnected to, the earlier one. Where a complaint has been through the full procedure, we will tell the complainant that the matter is now closed.

9.3 Duplicate Complaints

If we have resolved a complaint and receive a duplicate complaint on the same subject from a partner, family member or another person, we will check whether there is anything new that we have not already considered. If there is not, we will tell the new complainant that we have already investigated and responded, and that our procedure is complete, and refer them to the DfE if they are dissatisfied with how we handled the original complaint. If the complaint needs further consideration, we will repeat the procedure in section 6.0 or 7.0.

9.4 Complaint Campaigns

Where we receive a large number of complaints about the same subject, especially from people unconnected with the school, we may publish a single response on our website or send a template response to everyone. If complainants are not satisfied with how we have handled the situation, they can contact the DfE as set out in section 8.0.

10.0 RECORD KEEPING AND CONFIDENTIALITY

We keep a written record of all formal complaints (those made in writing), including the action taken at each stage, whether the complaint was resolved at stage 2 or went to a panel hearing, the final outcome, and any action we took as a result, whether or not the complaint was upheld. Records include copies of letters and emails and notes of meetings and phone calls. The Head Teacher, or the Chair for a complaint about the Head Teacher, makes sure the records are kept.

Correspondence, statements and records about individual complaints are confidential and stored securely, and are seen only by those involved in investigating the complaint or in the panel hearing. The exceptions are where the Secretary of State, or someone acting for them, or the complainant asks for access to the records, for example through a freedom of information request or a subject access request under the Data Protection Act 2018 and UK GDPR, or where the material must be made available to Ofsted. We keep records for only as long as needed and in line with data protection law and our privacy notices.

The details of a complaint, including the names of those involved, are not shared with the whole School Governance Board, in case a panel hearing has to be arranged later. The exception is a complaint against the whole Board, who need to know the allegations in order to respond. Where members of the Board have become aware of the substance of a complaint before the panel stage, we will where reasonably practicable arrange for an independent panel. A complainant who believes there is likely to be bias in the proceedings can ask for an independent panel, and the Board will not unreasonably refuse.

On request, we give parents the number of formal complaints we registered in the previous school year.

11.0 LEARNING LESSONS

The Head Teacher, with the School Governance Board, reviews any underlying issues raised by complaints, respecting confidentiality, to decide whether there are improvements we can make to our procedures or practice to help prevent similar events in future. Learning from complaints feeds into our school improvement planning.

12.0 MONITORING ARRANGEMENTS

The School Governance Board monitors how well the complaints procedure works in making sure complaints are handled properly. The Head Teacher reports to the Board each term on the number and nature of complaints, the stage at which they were resolved, and the lessons learned, without naming individuals. The Head Teacher reviews this policy every year, and sooner if the law or guidance changes. At every review, the policy is approved by the Proprietor and the School Governance Board.

13.0 LEGISLATION, GUIDANCE AND REFERENCES

- The Education (Independent School Standards) Regulations 2014, Schedule, Part 7 (complaints procedure)
- Best practice guidance for academies complaints procedures, DfE
- Complain about a school, GOV.UK
- The Equality Act 2010
- The Data Protection Act 2018 and UK GDPR
- The Freedom of Information Act 2000
- Model Complaints Policy and Complaints Policy Checklist, The Key, June 2026

14.0 RELATED POLICIES

- Safeguarding and Child Protection Policy
- Admissions Policy
- Behaviour, Rewards and Sanctions Policy
- Anti-Bullying Policy
- Suspension and Exclusion Policy
- Special Educational Needs Policy
- Staff Code of Conduct
- Whistleblowing, staff grievance and staff disciplinary procedures
- Privacy notices

15.0 APPENDICES

Appendix 1: Complaint Form

Appendix 2: Complaint Record

APPENDIX 1: COMPLAINT FORM

Please complete this form and send it to the Head Teacher via the school office, marked private and confidential, at Futures Matter - Northwood, 122 Emily Street, Highgate, Birmingham, B12 0XJ, or to office@futuresmattereducation.co.uk. If you need help, please call the school office on 0121 835 1360.

COMPLAINT FORM - to be completed by the complainant	
Your name and relationship to the school (for example, parent of a pupil):	
Pupil's name (if the complaint is about a pupil's experience):	
Your address, telephone number and email:	
What happened, with dates, times and the names of anyone involved or who saw it:	
Who you have already spoken to about the complaint, and what happened:	
What you would like us to do to put things right:	
Any documents you are attaching:	
Any support you need to take part (for example, help with reading or writing, or an interpreter):	
Signed and dated:	

APPENDIX 2: COMPLAINT RECORD

The person responsible for the complaint completes this record, and keeps it with the copies of letters, emails and notes of meetings and calls.

COMPLAINT RECORD - to be completed by the school	
Complaint reference and date received:	
Complainant, and who the complaint is about:	
Summary of the complaint:	
Stage 1: date acknowledged, action taken, date and outcome:	
Stage 2: date acknowledged, investigator, date of conclusion and outcome:	
Stage 3: date requested, panel members (and the independent member), hearing date and outcome:	
Safeguarding concern raised? DSL informed (date):	
Action taken as a result (whether or not upheld):	
Stage at which the complaint was resolved:	
Lessons learned and changes made:	
Reported to the School Governance Board (date):	